So too here. The Fourth Circuit violated the party-presentation principle when it decided "a case different from the one [respondent] advanced." 160 F. 4th, at 118 (Quattlebaum, J., dissenting from denial of rehearing en banc). As respondent conceded below, our precedent establishes that Congress, through the CSRA, intended to channel covered claims to the MSPB. ECF Doc. 72, pp. 8–9; ECF Doc. 11–1, p. 18. The parties thus confined their arguments to the narrow question whether respondent's claims were, in fact, covered. Unsatisfied with rejecting respondent's arguments on that question, however, the Fourth Circuit *sua sponte* addressed a much broader one and remanded for further proceedings on that question. The court transformed respondent's argument that the CSRA did not channel *its* claims into one that the CSRA might not—in light of current conditions—channel *any* claims. And the court did so without giving either side a chance to address its theory. See *Clark*, 607 U. S., at 9. That "'drasti[c]'" departure from the principle of party presentation "'constitute[d] an abuse of discretion.'" *Id.*, at 10 (quoting *Sineneng-Smith*, 590 U. S., at 375).

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Federal courts are not "roving commissions," *Broadrick* v. *Oklahoma*, 413 U. S. 601, 611 (1973), licensed to "'sally forth each day looking for wrongs to right,'" *Sineneng-Smith*, 590 U. S., at 376 (quoting *United States* v. *Samuels*, 808 F. 2d 1298, 1301 (CA8 1987) (Arnold, J., concurring in denial of rehearing en banc)). The Court of Appeals lost sight of those principles here.

The petition for a writ of certiorari is granted, the judgment of the Fourth Circuit is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE THOMAS, with whom JUSTICE BARRETT joins, concurring.

I agree with the Court that the Fourth Circuit erred by disregarding traditional party-presentation principles. I

write separately to explain why the Fourth Circuit's decision was also wrong on the merits.

As the Fourth Circuit seemed to acknowledge, this Court's precedent establishes that the District Court lacked jurisdiction over this challenge to a federal workplace policy. The Civil Service Reform Act of 1978, 5 U. S. C. § 1101 *et seq.*, provides a statutory review scheme through which certain federal employees must raise certain workplace complaints. The scheme authorizes judicial review only after the employees have had their claims heard by the Merit Systems Protection Board (and sometimes the Office of the Special Counsel). §§ 1214, 7512, 7703; 28 U. S. C. § 1295(a)(9). In *Elgin* v. *Department of Treasury*, 567 U. S. 1 (2012), this Court held that "covered employees appealing covered agency actions" must "proceed exclusively through the statutory review scheme." *Id.*, at 10. Respondent concedes that its members are covered employees. The Fourth Circuit agreed that the workplace policy at issue is a covered agency action. *National Assn. of Immigration Judges* v. *Owen*, 139 F. 4th 293, 308–313 (2025). Thus, the Fourth Circuit had to acknowledge that, under *Elgin*, "the National Association of Immigration Judges would be required to bring its case through [this] administrative scheme," which would require the dismissal of this case. 139 F. 4th, at 299; see also *id.*, at 305.

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Nevertheless, the Fourth Circuit strained to avoid dismissal of the case based on its belief that new political considerations changed the governing law. The court explained that it would not allow its "black robes to insulate [it] from taking notice of items in the public record." *Id.*, at 313. Specifically, the Fourth Circuit worried that because "the President removed the Special Counsel" and "two members of the MSPB," there were now "serious questions as to whether the CSRA's adjudicatory scheme continues to function as intended." *Id.*, at 305. Congress designed the CSRA to rely on MSPB independence, the Fourth Circuit

claimed, so now that "the Government has questioned the constitutionality of the removal protections enshrined in the CSRA," it was no longer clear that the statutory scheme was functioning as Congress intended. *Id.*, at 308. If it were not, the court reasoned, Congress might not have intended for such claims to be channeled to the MSPB any longer. The Fourth Circuit thus remanded to the District Court for factfinding as to how the CSRA scheme is functioning and whether a "new examination of Congressional intent may be required in light of changing circumstances." *Ibid.*

The Fourth Circuit's analysis bears little resemblance to legal interpretation. Neither the President's view that he can remove federal executive officials, see *Myers* v. *United States*, 272 U. S. 52 (1926), nor his having done so, change the meaning of the statute or the binding nature of this Court's interpretation of it. "Conditions may have changed, but the statute has not." *United States ex rel. Marcus* v. *Hess*, 317 U. S. 537, 547 (1943). Courts may not "rewrite the statutory scheme in order to approximate what we think Congress might have wanted had it known that" the President or courts may conclude that its removal restrictions were "beyond its authority." *Seminole Tribe of Fla.* v. *Florida*, 517 U. S. 44, 76 (1996). Statutes change only when Congress changes them, not when judges decide that they no longer vindicate Congress's purposes. See U. S. Const., Art. I, §§1, 7.

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As Judge Quattlebaum wrote in dissent, the Fourth Circuit's decision below "undermines important principles of our system of justice," including that law remains law despite the "political controversies of the day." *National Assn. of Immigration Judges* v. *Owen*, 160 F. 4th 100, 118 (2025) (en banc).

REPORTER'S NOTE

The attached opinion has been revised to reflect the usual publication and citation style of the United States Reports. The revised pagination makes available the official United States Reports citation in advance of publication. The syllabus has been prepared by the Reporter of Decisions for the convenience of the reader and constitutes no part of the opinion of the Court. Other revisions may include adjustments to formatting, captions, citation form, and any errant punctuation. The following additional edits were made:

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None